



CHAPTER xxxv.

An Act to confirm certain Provisional Orders of the Local A.D. 1917.
Government Board relating to Brighton Eastbourne
Liverpool and Wells-next-the-Sea. [2nd August 1917.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule Orders in
hereto shall be and the same are hereby confirmed and all the schedule
provisions thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 1) Act 1917.

A.D. 1917.

S C H E D U L E.

BOROUGH OF BRIGHTON.

*Brighton
Order.*

*Provisional Order for altering the Brighton Corporation
Act 1912.*

To the Mayor Aldermen and Burgesses of the Borough of
Brighton ; —

And to all others whom it may concern.

3 Edw. 7.
c. ccxxv.
2 & 3 Geo. 5.
c. lvii.

WHEREAS the Borough of Brighton (herein-after referred to as "the Borough") is an Urban Sanitary District of which the Mayor Aldermen and Burgesses acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the provisions of the Brighton Corporation Act 1903 and the Brighton Corporation Act 1912 (each of which Acts is herein-after separately referred to as the Act of the year in which it was passed and both of which Acts are herein-after together referred to as "the Local Acts") are in force in the Borough ;

And whereas by Section 17 of the Act of 1903 and Section 39 of the Act of 1912 the Corporation were authorised subject as provided in those sections to provide maintain work and run omnibuses within and beyond the Borough in the circumstances and along the routes mentioned and specified in the said sections ;

And whereas by Sections 6 and 7 of the Act of 1912 the Corporation were authorised to provide maintain and equip certain mechanically propelled vehicles in that Act called trolley vehicles to use the same upon certain routes within the Borough specified in the said Section 6 and to place erect lay down and maintain the trolley vehicle equipment defined by that Act and by Section 8 of the Act it was provided that such trolley vehicle equipment should subject as therein mentioned be completed within five years from the passing of the Act ;

And whereas by Section 31 of the Act of 1912 it was further provided that the Corporation might with the consent of the Board of Trade and subject to the provisions of the Act by lease to be approved by the Board of Trade demise to any person persons corporation or

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

company the right of user of the said trolley vehicle equipment and of running trolley vehicles by means thereof and of demanding and taking in respect of the same the fares rates and charges authorised by the Act; A.D. 1917.
Brighton
Order.

And whereas it is proposed that the period limited by Section 8 of the Act of 1912 for the completion of the said trolley vehicle equipment should be extended for a further period of five years and that the Corporation should be empowered to lease to any person the right of user and of running any motor omnibuses provided by them under the powers of the Local Acts and the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Act of 1912 in the manner herein-after set forth:

Now therefore We the Local Government Board in the exercise of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1912 shall be altered so that the following provisions shall have effect that is to say:— 38 & 39 Vict.
c. 55.

Art. I. The Act of 1912 shall have effect as if—

(1) in Section 8 there were substituted the words “ten years” for the words “five years”; and

(2) in Section 31 there were inserted—

(a) immediately after the words “by means thereof” in the first paragraph the words “and the right of user and “ of running any motor omnibuses provided by the Corporation under the powers of the Act of 1903 and this “ Act”;

(b) at the end of the first paragraph the words “and the Act of 1903”; and

(c) immediately after the words “any part thereof” in the fifth paragraph the words “or of the motor omnibuses leased”.

Art. II. This Order may be cited as the Brighton Order 1917. Alteration
of Act.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of January One thousand nine hundred
and seventeen.

(L.S.)

RHONDDA President.

H. C. MONRO Secretary.

A.D. 1917.

BOROUGH OF EASTBOURNE.

*Eastbourne
Order.*

*Provisional Order for partially repealing and altering the
Eastbourne Improvement Act 1885.*

To the Mayor Aldermen and Burgesses of the Borough of
Eastbourne;—

And to all others whom it may concern.

WHEREAS the Borough of Eastbourne (herein-after referred to as
“the Borough”) is an Urban Sanitary District of which the Mayor
Aldermen and Burgesses acting by the Council (herein-after referred to
as “the Corporation”) are the Urban Sanitary Authority;

48 & 49 Vict.
c. clxv.

59 Vict.
c. xii.
61 Vict.
c. xxxii.

And whereas there are in force in the Borough the unrepealed
provisions of the Eastbourne Improvement Act 1885 (which Act is
herein-after referred to as “the Local Act”) as altered by the
Eastbourne Orders 1895 and 1898 which were respectively confirmed by
the Local Government Board's Provisional Orders Confirmation (No. 18)
Act 1895 Session 2 and the Local Government Board's Provisional
Orders Confirmation (No. 2) Act 1898;

And whereas by Section 10 of the Local Act the Corporation
were empowered from time to time to exercise any statutory borrowing
power by creation of stock to be from time to time issued in accord-
ance with the provisions of that part of the Local Act and by Section 13
of the Local Act it was provided that for payment of dividends on
all Corporation Stock and for redemption and extinction or purchase
and extinction of all Corporation Stock there should be established and
formed a fund called the Eastbourne Corporation Consolidated Loans
Fund (in that part of the Local Act and herein-after referred to as
“the loans fund”);

And whereas by Section 18 of the Local Act provision is made
for the application of the loans fund;

And whereas by Article V. of the Eastbourne Order 1895 so much
of the Local Act as conferred upon the Corporation the power to create
and issue irredeemable stock was repealed;

And whereas the Corporation have made application to the Local
Government Board for the issue of a Provisional Order to partially
repeal alter or amend the Local Act as altered as aforesaid in the
manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of
the powers given to Us by Section 303 of the Public Health Act 1875
and by any other Statutes in that behalf do hereby order that from
and after the date of the Act of Parliament confirming this Order

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

the Local Act shall be partially repealed and altered so that the following provisions shall take effect namely:—

A.D. 1917.

*Eastbourne
Order.*

Art. I. Section 18 of the Local Act shall be repealed and in substitution therefor the following provisions shall have effect that is to say:—

Application
and use of
loans fund.

“ 18—(1) The Corporation shall from time to time apply the loans fund first in paying the dividends on all Corporation Stock and next in redeeming Corporation Stock according to the terms of issue and purchasing Corporation Stock for extinction.

“ (2) Where the Corporation have any statutory borrowing power the Corporation instead of raising moneys in the exercise of the statutory borrowing power by the creation and issue of additional Corporation Stock may subject to this section exercise the statutory borrowing power either wholly or partially by using for the purpose any moneys for the time being forming part of the loans fund and standing to the credit of any separate account or separate accounts forming part of the general account of the loans fund and not required for the payment of dividends on Corporation Stock.

“ (3) Where the Corporation determine to proceed in the manner authorised by subsection (2) of this section the Corporation shall pass a resolution to that effect and shall by the resolution prescribe all such matters or things as in or in pursuance of this section are referred to as prescribed or are required to be prescribed and after passing the resolution the Corporation shall—

“ (a) withdraw from the loans fund the prescribed sum which shall be equal to the amount of the statutory borrowing power proposed to be exercised and that sum shall be deemed to be withdrawn from such separate account or separate accounts in the general account of the loans fund as shall be prescribed; and

“ (b) deduct from the amount of Corporation Stock for the time being chargeable to the undertaking or purpose or attributable to the exercise of the borrowing power to which a separate account prescribed as aforesaid has reference a portion of stock at par value equal to the sum withdrawn from that separate account and transfer that portion of stock as from the prescribed date to the separate account in respect of which the statutory borrowing power is exercised under this section.

[Ch. xxxv.] *Local Government Board's* [7 & 8 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1917.

A.D. 1917.

*Eastbourne
Order.*

“ (4) The provisions of this Act shall apply—

“ (a) to the moneys withdrawn from the loans fund
“ and used as aforesaid as though the moneys so
“ withdrawn had been applied in the redemption of
“ Corporation Stock at par on the separate account
“ or separate accounts from which the moneys were
“ withdrawn and as though the moneys so used
“ had been raised by the issue of additional Cor-
“ poration Stock for the purposes of the separate
“ account in respect of which the statutory borrowing
“ power is exercised under this section ; and

“ (b) to the stock deducted and transferred as
“ aforesaid as though the stock so deducted had in
“ pursuance of this Act been redeemed by the
“ application of the loans fund on the separate
“ account or separate accounts from which the stock
“ was deducted but subject to the condition that
“ the said stock shall not be cancelled and as though
“ the stock so transferred were additional Corporation
“ Stock expressly issued for the purposes of the
“ separate account in respect of which the statutory
“ borrowing power is exercised under this section.”

Short titles.

Art. II. This Order may be cited as the Eastbourne Order 1917 and the Eastbourne Orders 1895 and 1898 and this Order may be cited together as the Eastbourne Orders 1895 to 1917.

Given under the Seal of Office of the Local Government Board
this Eleventh day of January One thousand nine hundred and
seventeen.

(L.S.)

RHONDDA President.

H. C. MONRO Secretary.

CITY OF LIVERPOOL.

*Liverpool
Order.*

*Provisional Order for altering the Liverpool Corporation
Act 1913.*

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool ;—

And to all others whom it may concern.

WHEREAS the City of Liverpool (herein-after referred to as “ the
City ”) is an Urban Sanitary District of which the Lord Mayor

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

Aldermen and Citizens acting by the Council (herein-after referred to as "the Corporation") are the Urban Sanitary Authority and the unrepealed provisions of the Liverpool Corporation Act 1913 (herein-after referred to as "the Local Act") are in force in the City;

A.D. 1917.
Liverpool
Order.
 3 & 4 Geo. 5.
 c. lxxxi.

And whereas by Section 33 of the Local Act it is provided that if the medical officer of the City certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and the court may make an order for the removal of such person to a hospital or place for the reception of the sick and for the detention and maintenance of such person therein and by subsection (6) of the said Section it is provided that the provisions of the said Section shall cease to be in force at the expiration of three years from the date of the passing of the Local Act unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner herein-after set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect namely:—

38 & 39 Vict.
 c. 55.

Art. I. Section 33 of the Local Act shall have effect and shall be deemed to have always had effect as if the words "six years" had been inserted in subsection (6) of the said Section instead of the words "three years."

Extension of
 time for
 operation of
 Section 33
 of Local Act.

Art. II. This Order may be cited as the Liverpool Order 1917.

Short title.

Given under the Seal of Office of the Local Government Board
 this Eighth day of March One thousand nine hundred and
 seventeen.

(L.S.)

RHONDDA President.
 H. C. MONRO Secretary.

A.D. 1917.

URBAN DISTRICT OF WELLS-NEXT-THE-SEA.

*Wells-next-
the-Sea
Order.*

*Provisional Order for partially repealing and altering the
Local Act 7 & 8 Vict. Cap. XCIV.*

To the Urban District Council of Wells-next-the-Sea ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Wells-next-the-Sea (herein-after referred to as “the Council”) are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Wells-next-the-Sea (herein-after referred to as “the District”);

7 & 8 Vict.
c. xciv.

And whereas there are in force in the District the unrepealed provisions of a Local Act passed in the seventh and eighth years of the reign of Her late Majesty Queen Victoria and intituled “An Act “ for lighting paving cleansing widening and improving the Streets “ of the Town or Parish of Wells in the County of Norfolk for “ removing and preventing Nuisances therein and for making new “ Streets or Roadways ” (herein-after referred to as “ the Local Act ”);

And whereas by Sections 208 to 225 of the Local Act the Council and their predecessors were authorised to make and supply gas within the District and provision was made relating thereto ;

And whereas by other provisions of the Local Act the Council and their predecessors were authorised to borrow money on mortgage bond or other security or by the grant of annuities for lives for the purposes of the Local Act and also in order to raise money for those purposes to levy one equal and general rate or assessment (therein called and herein-after referred to as “ the Improvement Rate ”);

And whereas there is now outstanding and existing the sum of six thousand three hundred pounds (herein-after referred to as “ the existing debt ”) and a life annuity of thirteen pounds granted by the Council (herein-after referred to as “ the life annuity ”) in respect of moneys borrowed by the Council and their predecessors under the powers of and for the purposes of the Local Act ;

And whereas all the expenses incurred or payable by the Council in the execution of the Public Health Acts are defrayed out of the Improvement Rate ;

And whereas it is expedient that the Local Act should be partially repealed and altered with regard to the making and levy of rates and to the security for the existing debt and the life annuity and to other matters and the Council have made application to the Local

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

Government Board for the issue of a Provisional Order to partially repeal and alter the Local Act in the manner herein-after set forth:

A.D. 1917.

*Wells-next-the-Sea
Order.*

38 & 39 Vict.
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order and declare that from and after the Thirty-first day of March One thousand nine hundred and eighteen (herein-after referred to as "the commencement of this Order") the Local Act shall be partially repealed and altered as herein-after mentioned that is to say:—

Art. I. The following provisions of the Local Act namely:—

Partial repeal
of Local Act.

The whole of the Act up to and including Section 207;
and

Sections 226 to 269 both inclusive
shall be wholly repealed:

Provided that notwithstanding such repeal the provisions of Sections 49 52 56 58 to 61 63 and 65 of the Local Act which relate to mortgages bonds or other securities and annuities granted or made by virtue of the Local Act and to transfers of the same shall subject to sub-division (2) of Article II. of this Order remain in force and continue to apply to the existing debt and the life annuity.

Art. II. The Local Act shall be further altered so that the following provisions shall have effect that is to say:—

Establish-
ment of dis-
trict fund on
which ex-
penses are to
be charged.

- (1) All expenses incurred or payable by the Council in the execution of the Local Act as altered by this Order which if this Order had not been made would have been payable out of the Improvement Rate and—

Notwithstanding anything in Section 207 of the Public Health Act 1875 all expenses incurred or payable by the Council in the execution of the Public Health Acts or of any other Act under which the expenses of the Council are to be charged on or defrayed out of the district fund and general district rate as expenses of the Public Health Act 1875—

shall be charged on and defrayed out of a district fund and general district rate which shall be levied by the Council under the Public Health Act 1875 and all the provisions of the last-mentioned Act with respect to the district fund and general district rate for the purposes of the Public Health Acts shall apply and have effect accordingly:

- (2) The existing debt and the life annuity shall be charged upon and defrayed out of the revenue of the gas undertaking and the district fund and general district rate of the District:

[Ch. xxxv.] *Local Government Board's* [7 & 8 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1917.

A.D. 1917.

*Wells-next-
the-Sea
Order.*

Saving for
rights of
mortgagees.

(3) Nothing in this Order contained shall prejudicially affect any mortgage bond or other security which may have been granted by the Council or their predecessors in respect of the existing debt or the life annuity or the rights and powers of the persons entitled under any such mortgage bond or other security to enforce the same and where for any such purpose it is necessary to continue the exercise of a power which would have existed but for this Order the power may continue to be exercised as if this Order had not been made and the general district rate leviable under this Order shall for any such purpose be levied and have effect in substitution for the Improvement Rate.

Borrowing
powers for
gas under-
taking and
repayment
of existing
debt.

Art. III. The Council may with the sanction of the Local Government Board and subject to the provisions of this Order borrow upon the security of the revenue arising from their gas undertaking and upon the security of the district fund and general district rate of the District or upon either of those securities such sums as may from time to time be required for the purposes of their gas undertaking or for the repayment of the existing debt or any part thereof.

Local Loans
Act and cer-
tain provi-
sions of Pub-
lic Health
Act made
applicable.

Art. IV. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Period for
repayment
of borrowed
moneys.

Art. V. The moneys borrowed under Article III. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Mode of
repayment.

Art. VI.--(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Formation
maintenance

(2) Subject to the provisions of Article VII. of this Order if the Council determine to repay by means of a sinking fund any moneys

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

borrowed under this Order the sinking fund shall be formed and maintained either— A.D. 1917.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

Wells-next-the-Sea Order.
 and applica-
 tion of sink-
 ing fund.

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

[Ch. xxxv.] *Local Government Board's* [7 & 8 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1917.

A.D. 1917.

*Wells-next-
the-Sea
Order.*

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. VII.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

Surplus of
sinking fund.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

[7 & 8 GEO. 5.] *Local Government Board's* [Ch. xxxv.]
Provisional Orders Confirmation (No. 1) Act, 1917.

Art. VIII.—(1) The Council shall have power—

A.D. 1917.

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

Wells-next-the-Sea Order.

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to re-borrow.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Art. IX. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine.

Application of borrowed moneys.

Art. X.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

Receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

[Ch. xxxv.] *Local Government Board's* [7 & 8 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1917.

A.D. 1917.

*Wells-next-
the-Sea
Order.*

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment of
debt.

Art. XI.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of the Local Act or of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by the Local Act or by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1917.

Art. XII. The Council shall keep separate capital and revenue accounts of all receipts credits payments liabilities and transactions in relation to their gas undertaking which accounts shall be distinct from the other accounts of the Council and shall be called respectively "the gas capital account" and "the gas revenue account."

*Wells-next-the-Sea
Order.*

Separate
accounts for
gas under-
taking.

Art. XIII.—(1) All moneys from time to time received by the Council by way of revenue from their gas undertaking shall be applied for the following purposes:—

Application
of gas
revenue.

First—In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of carrying on and maintaining the gasworks and the gas undertaking of the Council:

Secondly—In payment of the life annuity and the interest on the moneys borrowed or re-borrowed for the purposes of the gas undertaking:

Thirdly—In providing for the discharge in accordance with the provisions for the time being applicable of any moneys borrowed or re-borrowed for the purposes of the gas undertaking:

Fourthly—In payment if the Council think fit of the expenses of executing any permanent works authorised by the Local Act as altered by this Order for the purposes of the gas undertaking:

Fifthly—In setting apart if the Council think fit such money as they from time to time think reasonable for the purpose of forming a reserve fund to provide for any extraordinary expenditure in connexion with the gas undertaking or to meet the cost of the extension or improvement of the gas undertaking or to make good any deficiency in the revenue of the gas undertaking Provided that the reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article VI. of this Order as to the sinking fund until the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds and that whenever the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue from the gas undertaking.

(2) The Council shall carry to the credit of the district fund of the District so much of any balance remaining in any year of the revenue arising from their gas undertaking as may in the opinion of the Council not be required for carrying on the gas undertaking and paying the current expenses connected therewith.

[Ch. xxxv.] *Local Government Board's* [7 & 8 GEO. 5.]
Provisional Orders Confirmation (No. 1) Act, 1917.

- A.D. 1917. Art. XIV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of the Local Act or this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.
- Wells-next-the-Sea Order.*
Inquiries and expenses.
- Consent of Treasury to borrowing during war. Art. XV. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.
- Short title. Art. XVI. This Order may be cited as the Wells-next-the-Sea Order 1917.

Given under the Seal of Office of the Local Government Board
this Twenty-sixth day of January One thousand nine hundred
and seventeen.

(L.S.)

RHONDDA President.

H. C. MONRO Secretary.

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